IMPACT CREDIT GUARANTEE LIMITED
RC 1566879

A Subsidiary of Development Bank of Nigeria Plc

DATA PROTECTION AND PRIVACY POLICY

November 2024

Internal Use

DATA PROTECTION AND PRIVACY POLICY

IMPACT CREDIT GUARANTEE LIMITED
RC 1566879
A Subsidiary of Development Bank of Nigeria Plc

DOCUMENT REVIEW & APPROVAL

Document Name: Data Protection and Privacy Policy

Document Version: Version 4.0

Document Description: This document presents Impact Credit Guarantee Limited (ICGL) policy on Data Protection and Privacy. The Policy is intended to establish how ICGL handles the Personal Data of Customers, Suppliers, Employees, Workers and other third parties.

Approvals:

Policy Title	Data Protection and Privacy Policy			
Version Number	4.0			
Responsible Department	Risk Management			
	Name	Designation	Date	Signature
Approved by	Abubakar Jimoh	Chairman, Board of Directors		
Recommended for Board Approval by	Bonaventure Okhaimo	Chairman, Board Risk Committee		
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Version History:

Name	Date	Version
Data Protection and Privacy Policy	September 2020	1.0
Data Protection and Privacy Policy	February 2022	2.0
Data Protection and Privacy Policy	July 2023	3.0
Data Protection and Privacy Policy	November 2024	4.0

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1. Definition of Terms

- **Consent** of the data subject means any freely given, specific, informed and unambiguous indication of the data subject's wishes by which he or she, by a statement or by a clear affirmative action, signifies agreement to the processing of personal data relating to him or her.

- **Data** means characters, symbols and binary on which operations are performed by a computer which may be stored or transmitted in the form of electronic signals is stored in any format or any device.

- **Database** means a collection of data organized in a manner that allows access, retrieval, deletion and procession of that data; it includes but not limited to structured, unstructured, cached and file system type databases.

- **Data Administrator** means a person or organization that processes data.

- **Data Controller** means a person who either alone, jointly with other persons or in common with other persons or as a statutory body, determines the purposes for and the manner in which personal data is processed or is to be processed.

- **Data Portability** means the ability for data to be transferred easily from one IT system or computer to another through a safe and secure means in a standard format.

- **Nigeria Information Technology Development Agency** - NITDA

- **Nigeria Data Protection Commission** - NDPC

- **Data Protection Compliance Organization (DPCO**) means any entity duly licensed by NDPC for the purpose of training, auditing, consulting and rendering services and products for the purpose of compliance with this Regulation or any foreign Data Protection law or regulation having effect in Nigeria.

- **Data Subject** means an identifiable person; one who can be identified directly or indirectly, in particular by reference to an identification number or to one or more factors specific to his physical, physiological, mental, economic, cultural or social identity.

- **Party** means directors, shareholders, servants and privies of a contracting party.

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- **Personal Data** means any information relating to an identified or identifiable natural person (data subject); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person; It can be anything from a name, address, a photo, an email address, bank details, posts on social networking websites, medical information, and other unique identifier such as but not limited to MAC address, IP address, IMEI number, IMSI number, SIM and others.

- **Processing** means any operation or set of operations which is performed on personal data or on sets of personal data, whether by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.

- **Personal Data breach** means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data transmitted, stored or otherwise processed.

- **Record** means public record and reports in credible news media.

- **Sensitive Personal Data** means data relating to religious or other beliefs, sexual tendencies, health, race, ethnicity, political views, trades union membership, criminal records or any other sensitive personal information.

- **Data Protection Impact Assessment** (often referred to as a DPIA).

- **The functions with** (**) fall under the Group Shared Services Agreement with the parent company (Development Bank of Nigeria Plc.).

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2. Introduction

Impact Credit Guarantee Limited "ICGL or the Company" is a guarantee company devoted principally to providing partial credit guarantee coverage to Partner Financial Institutions (PFIs) on repayment obligations arising from certain eligible Loans which have been granted to Micro, Small and Medium Enterprises (MSMEs) and Small Corporates. To achieve this objective, the Company gathers and processes certain personally identifiable information about individuals with whom it has relationships for various purposes such as, but not limited to employees, Partner Financial Institutions, MSMEs, suppliers and other third parties.

This document details the following:

- The process of collection, handling and storing personal data of individuals to ensure compliance with the local laws on privacy, data protection and data security; and international best practices;
- The process of collection, handling and storing personal data of natural persons residing in Nigeria or residing outside Nigeria who are citizens of Nigeria. This Policy shall not operate to deny any Nigerian or any natural person the privacy rights he is entitled to under any law, regulation, policy, contract for the time being in force in Nigeria or in any foreign jurisdiction; and
- The protection/security and privacy of personal information.

2a. Scope of the Policy

This Policy applies to all Staff, Management, Board and Affiliates of ICGL. As a matter of best practice, it is also applicable to the following institutions working with the Company and its stakeholders who have access to personal information:

- All regulatory, supervisory, governmental or quasi-governmental authority with jurisdiction over ICGL.
- Any agent, contractor or third-party service provider, professional adviser or any other person under a duty of confidentiality to ICGL.
- Credit reference agencies and, in the event of default, debt collection agencies.
- Any actual or potential participant or sub-participant in, assignee, transferee of, any of ICGL rights and/or obligations in relation to the Data Subject.
- Any financial institution with which ICGL has or proposes to have dealings.

It is also applicable to all data that ICGL holds relating to identifiable individuals, even if that information technically falls outside of the Regulation. This includes, but not limited to Names of individuals, Email addresses, Contact phone number and any other information relating to the individuals.

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2b. Personal Data Protection Principles

The following are the governing principles relating to the protection of Personal Data in the Company:

- Ensuring that information is obtained and processed fairly, lawfully and as consented to by the Data Subject.
- Collected and processed only for specified, explicit and legitimate purposes;
- Adequate, accurate and without prejudice to the dignity of human person;
- Stored only for the period within which it is reasonably required;
- Processed in a manner that ensures its security using appropriate technical and organizational measures to protect against unauthorized or unlawful Processing and against accidental loss, destruction or damage;
- Not transferred to another country or international organization without appropriate safeguards being in place; and
- Made available to Data Subjects and allow Data Subjects to exercise certain rights within the Regulation in relation to their Personal Data.

Under no circumstance shall a staff or company carrying out or purporting to carry out data processing transfer any Personal Data to any person without ensuring compliance with this policy. All staff are responsible for and must be able to demonstrate compliance with the data protection principles listed above.

3. Data Governance & Structure

ICGL will be the Data Controller under the terms of the Regulation, and this means it is ultimately responsible for controlling the use and processing of personal data. ICGL has appointed a Data Protection Officer (DPO) for the purpose of ensuring adherence to the Nigeria Data Protection Regulation, relevant data privacy statements and data protection directives of the Company.

The Data Protection Officer ("DPO") is responsible for the development and implementation of this Policy. The DPO shall report to the Board through the Head, Risk Management on any breach of this Policy.

3a. Details of DPO

A Data Subject or a natural person reserves the right to obtain a copy of any personal information which the Company holds about him and to advise the Company of any perceived inaccuracy. To proceed with such request, the client should contact the DPO (Data Protection Officer), verify his

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identity and specify what information is required. An administrative fee may be charged if the requests are repetitive or excessive.

Contact Details of DPO

Name: Ebube Wabara

Email: Info@impactguaranteeng.com

Contact Details of Customer Service

In providing the telephone, facsimile number, postal and e-mail address or similar details of a Data Subject, the Data Subject agrees that may contact them by these methods to keep them informed about ICGL's products and services or for any other reason. If the Data Subject prefer not to be kept informed of ICGL's products and services, please contact ICGL by E-mail at Info@impactguaranteeng.com.

3b. Job Description of DPO

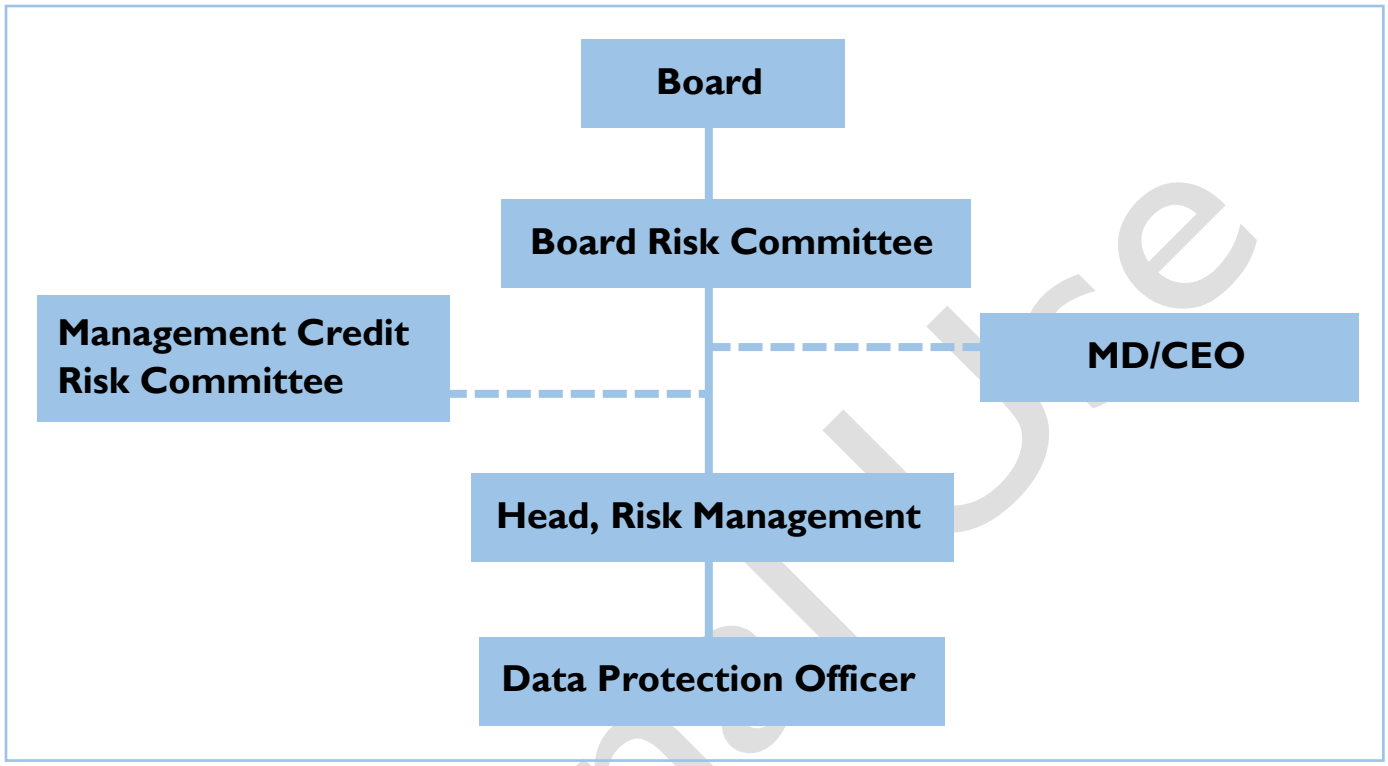
The DPO's responsibilities include, but are not limited to, the following:

- Educating employees on compliance requirements of the Data Protection and Privacy Policy;
- Training staff involved in data processing;
- Serving as the point of contact between the Company and Nigeria Data Protection Commission (NDPC)
- Monitoring performance and providing advice on the impact of data protection efforts;
- Maintaining comprehensive records of all data processing activities conducted by the Company, including the purposes of all processing activities, which must be made public on request; and
- Interfacing with data subjects to inform them about how their data is being used, their right to have their personal data erased, and what measures the company has put in place to protect their personal information.

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3c. Organogram

The following is the Organogram for the Protection and Privacy of Data.



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4. Roles & Responsibilities of Employees and Directors

All staff members of ICGL have a responsibility to protect and preserve information and data generated, accessed, modified, transmitted, stored or used at ICGL.

The responsibilities towards data protection and privacy are presented below:

- All employees, contractors and third-party personnel shall comply with the policy and associated procedures.
- All personnel, contractors and third-party personnel involved with storing and processing of data at ICGL have a responsibility for reporting data and cyber related security incidents and any identified weaknesses.
- All personnel, contractors and third-party personnel involved with storing and processing of data at ICGL shall be responsible for supporting and actively participating where necessary, in all steps taken to mitigate information security risks.

4a. Board Risk Committee (BRC)

- Set the tone and ensure that security initiatives and activities are aligned with ICGL's business objectives;
- Approve all updates to ICGL's Data Protection and Privacy Policy; and
- Evaluate strategies on future initiatives of the Company, regarding Data Protection and Privacy

4b. Management Credit and Risk Committee (MCRC)

- Ensure data protection objectives are established and are aligned with the strategic direction of ICGL
- Ensure that the resources needed for the protection of data are made available
- Communicate the importance of effective data protection in the Company and of conforming to its requirements
- Support other relevant Management Committee roles to demonstrate their leadership as it applies to their areas of responsibility

4c. Managing Director/Chief Executive Officer

- Provide direction and ensure that Data Protection and Privacy initiatives and activities are aligned with business objectives and IT strategies.
- Actively oversee and promote Data Protection and Privacy as part of the Information Security Programme.

4d. Head of Risk Management (HOR)

- Oversee implementation and enforcement of ICGL's Data Protection and Privacy Policy as part of the Information Security Programme
- Recommend security measures to protect ICGL's information asset to the Board Risk Committee;

4e. Data Protection Officer (DPO)

- Implement and enforce ICGL's Data Protection and Privacy Policy as part of the Information Security Programme
- Ensure compliance with information security and report observed deviations.

4e. Information Technology (IT) Unit (**)

- Determine the method and approach for implementing strategic information technology security objectives, and initiatives.

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- Manage security for IT products, network devices, end user access management and systems.
- Monitor and analyze security alerts and information and distribute to appropriate personnel.
- Implement an incident response plan that addresses roles, responsibilities, and communication and contact strategies in the event of a compromise.
- Creating, documenting, reviewing and maintaining individual user accounts or user group profiles that meet the requirements of the Logical Access Control Policy.
- Ensure the running of external network vulnerability scans at least quarterly and after any significant change in the network (such as new system component installations, changes in network topology, firewall rule modifications, product upgrades).
- Tracking and monitoring of all access to network resources.

4f. Human Resources (HR) Unit (**)

- Responsible for tracking employee participation in the Data Protection and Privacy program;
- Facilitating participation of information security awareness by all employees upon hire and at least annually;
- Ensuring that employees acknowledge in writing that they have read and understand ICGL's Data Protection and Privacy Policy; and
- Implementing disciplinary actions on any staff failing to comply with the Data Protection and Privacy, in line with the Group's approved sanction grid.

4g. End User Responsibility

- All Staff (i.e. employees on the payroll of ICGL and others acting in a similar capacity, such as contractors, consultants and temporary/contract staff etc.) are responsible for complying with this policy where relevant to their jobs.
- Users are responsible for protecting passwords that grant them access to resources.
- Users must report suspected compromises of information resources.
- They are responsible for maintaining the security of all information entrusted to them.
- Upon hire, as a condition of employment, each staff undertakes to comply with ICGL's Data Protection and Privacy Policy.

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5. Data Protection Requirements

5a. Lawful, Fairness & Transparency

At ICGL, Personal data shall be processed lawfully in relation to the Data Subject. ICGL will only collect, process and share Personal Data lawfully and for specified purposes in line with the requirement of the NDPR. The restrictions are not intended to prevent processing but ensure that ICGL process Personal Data fairly and without adversely affecting the Data Subject.

ICGL shall allow processing of data for specific purposes, some of which are set out below:

- the Data Subject has given his or her consent;
- the Processing is necessary for the performance of a contract with the Data Subject;
- to meet our legal compliance obligations;
- to protect the Data Subject's vital interests or another natural person;
- to perform a task in the interest of the public or in the exercise of an official public mandate vested in ICGL.

The Data Subjects shall be informed of the specific purpose for collecting the data and consents to Processing of their Personal Data either via an agreement/contract or an affirmative action. Where Consent is given in a document which deals with other matters, then the Consent must be clearly distinguishable from the other matters.

Prior to the collection of personal data from Data Subjects, ICGL shall provide information regarding the existence of automated decision making, including profiling and the right to object.

Data Subjects must be able to easily withdraw Consent to Processing at any time and withdrawal must be promptly honored. Consent may need to be refreshed if you intend to Process Personal Data for a different and incompatible purpose which was not disclosed when the Data Subject first consented.

All Units and Departments will need to evidence Consent captured and keep records of all Consents so that ICGL can demonstrate compliance with Consent requirements.

- Data Subjects have rights when it comes to how ICGL handle their Personal Data. These include rights to:
- withdraw consent to processing at any time;
- receive certain information about the Data Controller's Processing activities;
- request access to their Personal Data;

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- ask ICGL to erase Personal Data if it is no longer necessary in relation to the purposes for which it was collected or processed or to rectify inaccurate data or to complete incomplete data;
- restrict Processing in specific circumstances;
- challenge Processing which has been justified based on ICGL`s legitimate interests or in the public interest;
- make a complaint to the supervisory authority;
- in limited circumstances, receive or ask for their Personal Data to be transferred to a third party in a structured, commonly used and machine-readable format; and

All Staff shall verify the identity of an individual requesting data under any of the rights listed above (do not allow third parties to persuade you into disclosing Personal Data without proper authorization).

All Staff shall immediately forward any Data Subject request through their supervisor to the DPO.

Prior to obtaining personal information, ICGL must also inform the Data Subject of the following:

- Identity and details of the Company
- Contact details of the Data Protection Officer
- Purpose of the processing
- Legal basis for the processing
- The legitimate interest of ICGL
- Recipient of personal data (if any)
- Where applicable, the fact that the data will be transferred to a foreign country or an international organization.
- Retention period of the Data
- Rights of the Data Subject Existence of automated decision making (if any) and at least meaningful information on the logic involved, the significance and consequence of the processing.

5b. Purpose Limitation

Personal Data shall be collected only for specified, explicit and legitimate purposes. It must not be further processed in any manner incompatible with those purposes.

No Staff shall use Personal Data for new, different or incompatible purposes from that disclosed when it was first obtained unless the Data Subject has been informed of the new purposes and they have consented where necessary.

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5c. Data Minimization

The personal data obtained by ICGL shall be adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.

ICGL shall incorporate data minimization into the total lifecycle of their products, services, and processes. Also. data minimization rules with respect to the personal data processing principles shall be included in contracts as a safeguard to transfer personal data to third countries or international organizations.

5d. Data Accuracy

Personal Data must be accurate and, where necessary, kept up to date. It must be corrected or deleted without delay when inaccurate.

All Units and Departments shall ensure that the Personal Data used and held are accurate, complete, kept up to date and relevant to the purpose for which they are collected. The accuracy of any Personal Data must be at the point of collection and at regular intervals afterwards. All reasonable steps to destroy or amend inaccurate or out-of-date Personal Data must be taken at all times.

5e. Storage Limitation

ICGL will only keep personal information for a minimum of five (5) years, unless a longer retention period is required or permitted by law (such as tax, accounting or other legal requirements).

Personal Data shall not be kept in an identifiable form for longer than is necessary for the purposes for which the data is processed. The personal records should be maintained and stored as per the records retention and classification matrix. The ownership and management of personal records shall be defined and documented.

No Unit or Department shall keep Personal Data in a form which permits the identification of the Data Subject for longer than needed for the legitimate business purpose or purposes for which were originally collected including for the purpose of satisfying any legal, accounting or reporting requirements.

All Unit or Department shall take all reasonable steps to destroy or erase from our systems all Personal Data that we no longer require in accordance with all ICGL's applicable records retention schedules and policies. This includes requiring third parties to delete that data where applicable.

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5f. Integrity and Confidentiality

Personal Data must be secured by appropriate technical and organizational measures against unauthorized or unlawful Processing, and against accidental loss, destruction or damage.
ICGL will develop, implement and maintain safeguards appropriate to its size, scope and business, its available resources, the amount of Personal Data that the Company own or maintain on behalf of others and identified risks (including use of encryption where applicable). ICGL will regularly evaluate and test the effectiveness of those safeguards to ensure security of our Processing of Personal Data.

All staff shall be responsible for protecting the Personal Data held and must implement reasonable and appropriate security measures against unlawful or unauthorized Processing of Personal Data and against the accidental loss of, or damage to, Personal Data.

All Staff must follow all procedures and technologies in place to maintain the security of all Personal Data from the point of collection to the point of destruction. ICGL only accepts transfer of Personal Data to third-party service providers who agree to comply with the required policies and procedures and who agree to put adequate measures in place, as requested.

All Staff must maintain data security by protecting the confidentiality, integrity and availability of the Personal Data, defined as follows:

- Confidentiality means that only people who have a need to know and are authorized to use the Personal Data can access it;
- Integrity means that Personal Data is accurate and suitable for the purpose for which it is processed; and
- Availability means that authorized users can access the Personal Data when they need it for authorized purposes.

ICGL shall carry out audit of its data protection practices regularly and submit same to NDPC through the Data Protection Audit Company (DPCO) as required.

5g. Accountability

Any Staff who is entrusted with Personal Data of a Data Subject or who is in possession of the Personal Data of a Data Subject shall be accountable for his acts and omissions in respect of data processing, and in accordance with the principles contained in this Regulation.

Also, a party to any data processing contract, other than an individual Data Subject, shall take reasonable measures to ensure the other party does not have a record of violating the principles set out in Part 5 Nigeria Data Protection Act, 2023 or a regulatory authority for data protection within or outside Nigeria; accordingly.

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6. Privacy Policy

ICGL exists to alleviate financing constraints faced by Micro, Small and Medium Scale Enterprises (MSMEs) in Nigeria through providing partial credit guarantees and technical assistance to eligible Partner Financial Institutions on a sustainable basis. ICGL`s services are provided at our Head Office, e-channels including the Internet. Also, Customers i.e. Partner Financial Institutions (PFIs) and potential customers can access ICGL`s services through other channels including its website www.impactguaranteeng.com

By accessing ICGL's services through the e-channels platform and or subscribing to any of its various products, ICGL's customers provide certain personally identifiable information and information of consumers i.e. end borrowers

Also, ICGL 's staff are required to provide certain personally identifiable information before, during and after recruitment. This document details the policies of ICGL guiding the collection, use, storage, destruction and disclosure of this personally identifiable information.

This policy document would be made available on our website at www.impactguaranteeng.com. It shall be read thoroughly before accessing ICGL`s service. By accessing or subscribing to any of ICGL's services, its consent to the processing of personal data in accordance with this policy.

6a. Description of collectable personal information

ICGL may ask for certain personally identifiable information that can be used to contact or identify an individual ("Personal Data") while using the Company's services or as a staff of ICGL. Personally, identifiable information may include, but is not limited to:

6ai. Name and Contact Data: ICGL collects first, middle and last name, email address, bank verification number, postal address, phone number, signature, date of birth, an identification document such as a copy of driver's license, international passport, national identity card, and other similar contact data from its customers and staff. This includes data that does not name an individual but could potentially identify them. For example, a payroll or staff number. ICGL shall ensure that staff are notified when any personal data they have in their possession will be used as its subject to the regulation.

6aii. Credentials: When a PFI/MSME subscribes to any of ICGL's products, particularly our echannels products, they may be required to provide a User ID, a password, details from a token response device, password hints and similar security information used for authentication and account access.
They may also be required or opt to use biometric identification to access your account and authenticate transactions. While this information is required to ensure that they carry out

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transactions securely, appropriate security measures have been implemented to protect these data including encryption and storage in a secured environment, if required.

6aiii. Usage Data: ICGL may also collect information that the browser sends whenever customers access its online services and or when you access the services by or through a mobile device ("Usage Data").

This Usage Data may include information such as your computer's Internet Protocol address (e.g. IP address), browser type, browser version, the pages of ICGL`s Service that was visited, the time and date of the visit, the time spent on those pages, unique device identifiers and other diagnostic data.

When people access services by or through a mobile device, this Usage Data may include the following:

6aiv. Geo-Location information: ICGL may request access or permission to and track location-based information from your mobile device, either continuously or while you are using our mobile application, to provide location-based services. If you wish to change our access or permissions, you may do so in your device's settings.

6av. Mobile Device Access: ICGL may request access or permission to certain features from your mobile device, including your mobile device's camera, calendar, Bluetooth, contacts, storage and other features. If you wish to change our access or permissions, you may do so in your device's setting.

6avi. Mobile Device Data: ICGL may automatically collect device information (such as your mobile device ID, model and Manufacturer), operating system, version information, IP address and diagnostic data.

6b. Purpose of collection of personal data

The purpose of collecting personally identifiable information is to enable ICGL to provide customers with the required services and ensure a lawful basis for handling any personal data of staff. The usage of data may be extended beyond the above whenever necessary for the purposes of meeting legal, regulatory, contractual obligations, and other legitimate business interests.
Specifically, the uses include but not limited to:

- To provide and maintain services
- To notify about changes to service
- To provide customer care and support

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- To provide analysis or valuable information so that we can improve our Service
- To monitor the usage of Service
- To detect, prevent and address technical issues
- To pay salary of staff,
- To carryout employment background checks
- To carryout investigation and detect crime

6c. Technical methods used to collect and store personal information, cookies, JWT, web tokens etc.

To maintain ICGL `s security systems, protect staff, record transactions, and, in certain circumstances, to prevent and detect crime or unauthorized activities, ICGL reserves the right to monitor all internet communications including web and email traffic into and out of its domains. The Company may use third-party Service Providers to monitor and analyze the use of Service provided e.g. Cookies.

6ci. Cookies

To improve internet service, ICGL may use a "cookie" and/or other similar files or programs which may place certain information on your computer's hard drive when you visit ICGL web site. A cookie is a small amount of data that ICGL `s web server sends to your web browser when you visit certain parts of the Company`s site. ICGL use analytics cookies to help understand how you use the Company`s site to discover what content is most useful to you. Cookies do not enable ICGL to gather personal information about you unless you give the information to ICGL `s server. Most Internet browser software allows the blocking of all cookies or enables you to receive a warning before a cookie is stored. For further information, please refer to your Internet browser software instructions or help screen. Alternatively, information on deleting or controlling cookies is available at www.allaboutcookies.org

6d. Access (if any) of third party to personal data and purpose of access

ICGL service may contain links to other sites that are not operated by the Company. If you click on a third-party link, you will be directed to that third party's site. ICGL shall always advise through its website that Privacy Policy of every site is reviewed during visits.

ICGL has no control over and assume no responsibility for the content, privacy policies or practices of any third-party sites or services.

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ICGL will take all steps reasonably necessary to ensure that data is treated securely and in accordance with this Privacy Policy. No transfer of Personal Data will take place to an organization or a country unless there are adequate controls in place including the security of the data and other personal information.

6e. Available remedies in the event of violation of the privacy policy

In the event of a violation of the privacy policy, ICGL would set up a Panel to investigate and ensure access, correction, deletion, or return of the individual's data in question or employ other necessary measures to remedy the violation of the principles only with respect to the individual.

6f. The timeframe for remedy

The remedy agreed with the Data Subject should be implemented within 1week to 3 months.

6g. Any limitation clause

ICGL would not incur any damages, costs, or fees.

7. Employee Privacy Policy

ICGL is committed to protecting the privacy of its employees and other individuals employed by the Company or who apply for employment with ICGL. The proper safeguarding of all personal employee information (i.e., personal information by which you can be identified) collected in the course of the Company's day-to-day activities is a cornerstone of this commitment. ICGL adheres to the principles of the Nigeria Data Protection Regulation for the Protection of Personal Information to ensure that all information is properly collected, used only for the purposes for which it was collected, and disposed of in a safe and timely manner when no longer needed.

OUR PRIVACY PRINCIPLES

1. Accountability

ICGL is responsible for maintaining and protecting the personal employee information under its control. ICGL has appointed a Data Protection Officer who is responsible for ensuring the Organization's compliance with its privacy obligations under this policy and the Nigeria Data Protection Regulation.

2. Identifying Purposes

ICGL shall identify the purposes for which it is collecting personal employee information before this information is collected. Human resources staff collecting personal employee information on

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behalf of the Company should be able to explain to you the purposes for which the information is being collected.

3. Consent

All staff shall be informed, and consent obtained for the collection, use and disclosure of their personal information, except where otherwise required or permitted by law. When it is appropriate, your written consent will be obtained.

4. Limiting Collection

ICGL shall only collect the personal employee information that is reasonably required to meet the purposes of establishing, maintaining and concluding your employment. All such information shall be collected by fair and lawful means.

5. Limiting Use, Disclosure and Retention

Personal employee information shall only be used or disclosed for the purpose(s) for which it was reasonably collected unless you otherwise consent or when it is required or permitted by law. Personal employee information shall only be retained for the period of time required to fulfill the purposes for which it was collected and for a period of seven (7) years after employment ceases.

6. Accuracy

Personal employee information shall be maintained in as accurate, complete and up-to-date form as is reasonably necessary to fulfill the purposes for which it was collected.

7. Safeguards

Personal employee information shall be protected by adequate security safeguards. Safeguards include physical measures such as locked filing cabinets, organizational measures such as security clearances, and technological measures such as the use of passwords and encryption. ICGL shall work to ensure that its human resources employees and other employees are aware of the importance of maintaining the confidentiality of personal employee information.

8. Openness

ICGL shall make available to you, all relevant information about its policies and practices that apply to the management of your personal employee information.

9. Individual Access

Upon request, you shall be informed of the existence, use and disclosure of your personal employee information and be given access to it, except when prohibited by law. You may verify the accuracy and completeness of your employee personal information, and may request that it be amended, if appropriate. Requests for access to your personal information may be made to the Head of Human Resources (**).

Internal Use

10. Compliance

Any questions or concerns with regards to the Company's compliance (with) these Privacy Principles may be directed to ICGL's Data Protection Officer at: +234-9 904 0000 ext. 3006.

8. Data Security and Storage

ICGL recognizes the importance of protecting data from unauthorized access and data corruption and the Company shall:

- Develop security measures including but not limited to protecting systems from hackers
- Set up firewalls and protect email systems
- Store data securely with access to specific authorized individuals
- Employ data encryption technologies
- Develop organizational policy for handling personal data and other sensitive or confidential data
- Continuously build capacity for all staff

8a. Network Access Control

ICGL has deployed a number of solutions to prevent unauthorized access into the Company's networks. This will help in curbing and knocking off rogue systems from gaining access. There is an authentication mechanism deployed in the Company's domain to allow only authenticated users gain access to the network. It also keeps tabs of workstation activities and reporting mac addresses connected to a particular port at any given time.

8b. Intrusion Prevention System

ICGL has set up layers of security devices, controls and protocol in order to prevent intrusions. A Security Information and Event Management System is deployed to monitor network traffic in the Company's domain. There is also a machine learning mechanism which reports changes in behavior of traffic, brute force attacks, access and changes made on applications and system, rogue scan tools and detects malwares running on any workstation/server.

8c. Endpoint Security System

Endpoint security and protection is an approach ICGL takes to protect its server systems and client devices. It includes securing endpoints, or end-user devices like desktops, laptops, and mobile devices which serve as points of access to the Company's enterprise network and create points of entry that can be exploited by malicious actor. ICGL ensures that all these actors are covered within its domain in order to prevent unfavorable and unwanted behaviors.

Internal Use

8d. Data Backup

ICGL backs up data from its core applications daily and ensure all personal information are stored in the cloud. These are tested routinely.

8e. Hardware Encryption

There are a series of full volume encryption approached designed in order to protect data by providing an encryption methodology which encrypt the entire system volume using Advanced Encryption Standard (AES) encryption algorithm. ICGL leverages on these types of encryption frameworks to protect all its assets.

8f. Physical Security

ICGL physical security aims at providing a layered approach to physical security, which will provide a suitably secure environment. This is to prevent unauthorized physical access, damage, and interference to the organization's premises and information.

In line with the Group's information security policy, ICGL's office & facilities shall be kept secured at all times in order to prevent unauthorized access, damage and interference to ICGL's premises and information. cameras, locks and/or other automated controls shall be used to limit access to the data center and other secure areas.

9. Third Party Data Processing

ICGL's website may contain links to third-party websites, products and services. Information collected by such third parties which may include such things as location data or contact details shall be governed by the privacy practices and policies of the third parties, and ICGL will not be liable for any breach of confidentiality or privacy of your data on such sites. You are advised to learn about the privacy practices of those third parties.

Generally, staff are not allowed to share Personal Data with third parties unless certain safeguards and contractual arrangements have been put in place.

Staff may only share the Personal Data we hold with another employee if the recipient has a job-related need to know the information and the transfer complies with any applicable cross-border transfer restrictions.

Internal Use

Staff may only share the Personal Data we hold with third parties, such as our service providers, if:

- they have a need to know the information for the purposes of providing the contracted services;
- the Data Subject's Consent has been obtained;
- the third party has agreed to comply with the required data security standards, policies and procedures and put adequate security measures in place;
- the transfer complies with any applicable cross-border transfer restrictions; and
- a fully executed written contract that contains NDPR-approved third party clauses has been obtained.

The contracts with third parties handling personal information include clauses on the right to audit security technologies are implemented to enforce encryption.

ICGL shall, at its discretion, monitor usage of its information assets as per applicable laws and terms and conditions of employment agreed upon by ICGL and the employee/contractor/third party personnel. This may include, but not limited to; logging and reviewing of user activity such as telephone numbers dialed, web sites visited from ICGL owned assets and electronic communications exchanged through ICGL's information processing facilities and networks. Legal advice shall be sought in writing prior to monitoring the personal information of the user/customer and record of the same shall be maintained.

10. Internal Sanctions

Any person subject to this policy failing to comply with the general provisions set out above or specific issues which are dealt with in this policy, or any amendment thereto shall render him/her liable to appropriate disciplinary or legal action.

Breach of this Policy will be considered a serious disciplinary matter and will be dealt with in accordance with the Group's Disciplinary Procedure. The specific discipline imposed will be determined on a case-by-case basis, taking into consideration the nature and severity of the violation, prior violations of the policy, regulations, laws and all other relevant information.

In a case where an individual that violates this policy is not an employee of ICGL the matter shall be submitted to the Internal Audit (**) team. The Internal Audit (**) team may refer the information to law enforcement agencies and/or law agencies for consideration as to whether criminal charges should be filed against the alleged violator(s).

Internal Use

All information security incidents will be sanctioned except where it was clearly established that it was unintended or accidental which may attract lesser sanctions include e.g. mandatory class training or as determined by Human Resources Unit (**).

In less serious cases you may have access to the internet removed or other disciplinary action taken against you, short of dismissal. All cases shall be determined following the Disciplinary Committee (DC) process, except issues that attract departmental warning letter.

Management is at liberty to dispense sanctions as it deems fit without restraint to the Group's disciplinary procedure.

11. Transfer to a Foreign Country

ICGL restricts data transfers to countries outside Nigeria and international organizations to ensure that the level of data protection afforded to individuals by the NDPR is not undermined. ICGL shall only transfer Personal Data outside Nigeria or to an international organization if one of the following conditions applies:

- the Data Protection Authority of Attorney General of the Federation has issued a decision confirming that the country to which we transfer the Personal Data ensures an adequate level of protection for the Data Subject's rights and freedoms;
- the transfer is necessary for one of the other reasons set out in the NDPR including the performance of a contract between us and the Data Subject, reasons of public interest, to establish, exercise or defend legal claims or to protect the vital interests of the Data Subject where the Data Subject is physically or legally incapable of giving Consent and, in some limited cases, for our legitimate interest.

12. Awareness and Training

All staff shall be made aware of the Data Protection Regulation and Privacy Policy and their responsibilities for the protection of personal data. All staff and the DPO shall acknowledge their awareness, understanding and compliance with this Policy.

13. Data Protection Impact Assessment

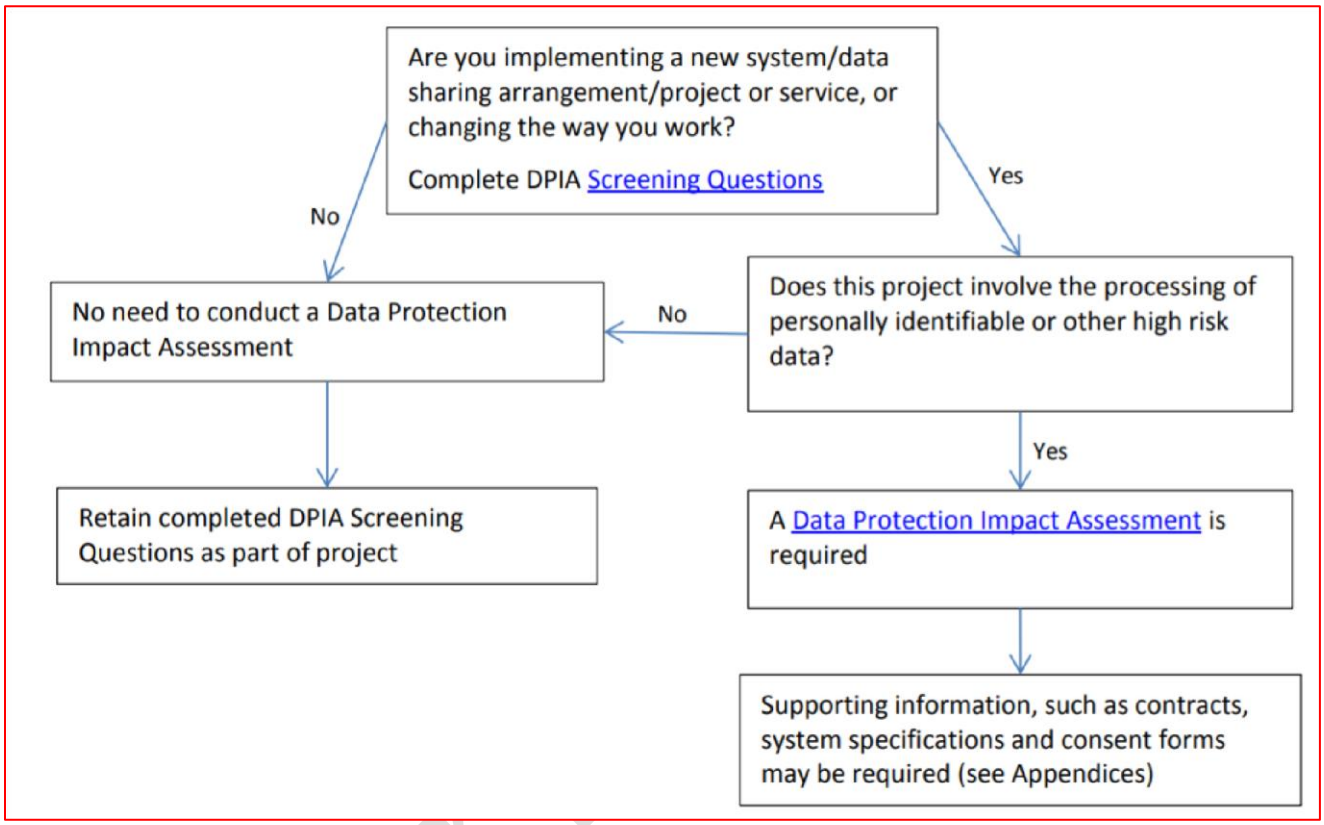
A Data Protection Impact Assessment (often referred to as a DPIA) is a process or task designed to identify what data protection issues may arise from certain 'high risk' projects we are undertaking.

Internal Use

A 'high risk' project is one where the processing of personal data is likely to result in infringing of rights and freedom.

Internal Use

The DPIA will help the Company manage any risk by allowing us to identify the risk, and to implement solutions to those risks project at an early stage.



DPIAs should be completed where a system/data sharing/project includes the use of personal data, where there is otherwise a risk to the privacy of the individual, utilization of new or intrusive technology, or where private or sensitive data which was originally collected for a limited purpose will be reused in a new and 'unexpected' way.

14. Communication of Personal Data Breach

Where the Personal Data breach is likely to result in a high risk to the rights and freedoms of Data Subjects, the Data Controller shall communicate the Personal Data breach to the Data Subject without undue delay in any case not later than 72 hours/3 days.

The communication to the Data Subject shall describe in clear and plain language the nature of the Personal Data breach and contain at least the information and measures referred to in Section 13.

The communication to the Data Subject shall not be required if any of the following conditions are met:

- the Data Controller has implemented appropriate technical and organizational protection measures, and those measures were applied to the Personal Data affected by the Personal Data breach, those that render the Personal Data unintelligible to any person who is not authorized to access it, such as encryption;
- the Data Controller has taken subsequent measures to ensure that the high risk to the rights and freedoms of Data Subjects are no longer likely to materialize;
- it would involve disproportionate effort. In such a case, the Data Controller shall issue a public communication or similar measure whereby the Data Subjects are informed in an equally effective manner
- Where the Data Controller has not communicated the Personal Data breach to the Data Subject, the Supervisory Authority, having considered the likelihood of the Personal Data breach resulting in a high risk, may order the Data Controller to make such communication or declare that any of the conditions referred to above are met.

15. Notification of a Personal Data breach

In the case of a Personal Data breach, the Data Controller shall without undue delay and, where feasible, not later than 72 Hours/3 days after having become aware of it, notify the Personal Data breach to the CBN and NDPC, unless the Personal Data breach is unlikely to result in a risk to the rights and freedoms of Data Subject. Any notification to the CBN and NDPC outside the specified time frame, shall be accompanied by reasons for the delay.

The notification referred to above shall at least:

- describe the nature of the Personal Data breach including where possible, the categories and approximate number of Data Subjects concerned, and the categories and approximate number of Personal Data records concerned;
- communicate the name and contact details of the data protection officer or other contact point where more information can be obtained;
- describe the likely consequences of the Personal Data breach;
- describe the measures taken or proposed to be taken by the Data Controller or Processor to address the Personal Data breach, including, where appropriate, measures to mitigate its possible adverse effects.
- Where, and in so far as, it is not possible to provide the information at the same time, the information may be provided in phases without undue further delay.

Internal Use

- The Data Controller shall document any Personal Data breaches, comprising the facts relating to the Personal Data breach, its effects and the remedial action taken. That documentation shall enable the CBN and NDPC to verify compliance with this Regulation.

16. Internal Audit

The Internal Audit Department as part of its annual audit shall conduct a detailed audit of ICGL's privacy and data protection practices with at least each audit stating:

- personally identifiable information ICGL's collects on employees and members of the public;
- any purpose for which the personally identifiable information is collected;
- any notice given to individuals regarding the collection and use of personal information relating to that individual;
- any access given to individuals to review, amend, correct, supplement, or delete personal information relating to that individual;
- whether or not consent is obtained from an individual before personally identifiable information is collected, used, transferred, or disclosed and any method used to obtain consent;
- the policies and practices of ICGL's for the proper use of personally identifiable information;
- ICGL's policies and procedures for privacy and data protection;
- the policies and procedures of ICGL's for monitoring and reporting violations of privacy and data protection policies; and
- the policies and procedures of ICGL's for assessing the impact of technologies on the stated privacy and security policies.

Where a Data Controller processes the Personal Data of more than 1000 in a period of six months, a soft copy of the summary of the audit containing information stated above shall be submitted to NDPC.

On annual basis, a Data Controller who processed the Personal Data of more than 2000 Data Subjects in a period of 12 months shall, not later than the 15th of March of the following year, submit a summary of its data protection audit to the Commission. The data protection audit shall contain information as specified above.

Internal Use

17. Changes to Privacy Policy

ICGL's reserves the right to amend its prevailing Data Protection and Privacy Policy at any time and will place any such amendments as it occurs on its Web Site. This Data Protection and Privacy Statement is not intended to, nor does it create any contractual rights whatsoever or any other legal rights, nor does it create any obligations on ICGL in respect of any other party or on behalf of any party.

Appendix 1: Employee Consent Form

Impact Credit Guarantee Limited

EMPLOYEE CONSENT FORM

I acknowledge and understand that my personal information will be collected pursuant to Impact Credit Guarantee Limited (ICGL) Privacy Policy (*attached*) and that the Company is collecting and using this personal employee information for the establishment, management and conclusion of my employment relationship, including payroll, benefits administration (including sickness, disability, and pension benefits as applicable) and other reasonable purposes regarding my employment.

I hereby consent to this information being collected for the above purposes:

_____

Employee Name

_____

Date

_____

Signature of Employee

Internal Use